

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
MICHAEL DEMAS, CATHERINE NUNES,
GWYNN GLASGOW, JENNIFER FREDERICK,
DEREK LEWIS, and GEORGE HUNTE,

Plaintiffs,

- against -

THE CITY OF NEW YORK; SERGEANT ALAN CHAU,
OFFICER FERNANDEZ shield no. 16156, OFFICER
MIGUEL VANBRAKLE shield no. 28743, OFFICER
RICARDO MARTINEZ tax no. 950834, and NEW YORK
CITY POLICE DEPARTMENT POLICE OFFICERS JANE
and JOHN DOE 1-10 (currently unidentified),

Defendants.
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SUMMONS

Plaintiff designates Kings
County as the place of trial.

The basis of venue is:
The county in which the action
arose per CPLR 504(3)

The cause of action arose in
Kings County and is against
the City of New York

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
June 28, 2019

Sincerely,



Abraham Rubert-Schewel
Lord & Schewel PLLC
233 Broadway, Suite 2220
New York, NY 10279
W: 212-964-0280
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TO:

THE NEW YORK CITY LAW DEPARTMENT
100 Church Street
New York, NY 10007

SERGEANT ALAN CHAU
67th PRECINCT
2820 Snyder Avenue
Brooklyn, NY 11226

OFFICER FERNANDEZ shield no. 16156
67th PRECINCT
2820 Snyder Avenue
Brooklyn, NY 11226

OFFICER MIGUEL VANBRAKLE shield no. 28743
67th PRECINCT
2820 Snyder Avenue
Brooklyn, NY 11226

OFFICER RICARDO MARTINEZ tax no. 950834
67th PRECINCT
2820 Snyder Avenue
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COUNTY OF KINGS

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MICHAEL DEMAS, CATHERINE NUNES,
GWYNN GLASGOW, JENNIFER FREDERICK,
DEREK LEWIS, and GEORGE HUNTE,

VERIFIED COMPLAINT

Plaintiffs,

- against -

THE CITY OF NEW YORK; SERGEANT ALAN CHAU,
OFFICER FERNANDEZ shield no. 16156, OFFICER
MIGUEL VANBRAKLE shield no. 28743, OFFICER
RICARDO MARTINEZ tax no. 950834, and NEW YORK
CITY POLICE DEPARTMENT POLICE OFFICER JANE and
JOHN DOE 1-10 (currently unidentified),

Defendants.

-----X
Plaintiffs, by their attorney, Abraham Rubert-Schewel Esq., of Lord & Schewel PLLC,
allege the following:

PRELIMINARY STATEMENT

1. Plaintiffs Michael Demas, Catherine Nunes, Gwynn Glasgow, Jennifer Frederick, George Hunte and Derek Lewis (collectively "Plaintiffs") are members of the Caribbean community who reside in the 67th precinct.
2. During J'Ouvert, as well as throughout the year, members of the Caribbean community in the 67th precinct are routinely harassed and arrested without probable cause for petty or administrative offenses such as operating a bottle club without a license.
3. These charges, as in this case, are typically dismissed and sealed, or declined for prosecution, by the Brooklyn District Attorney's Office.

4. As a result of these illegal and targeted acts, Defendant Sergeant Alan Chau, conditions Sergeant for the 67th precinct, has been sued at least 7 times since 2018, for unconstitutional alcohol related arrests.
5. The City of New York, even in the face this unconstitutional pattern and practice, has failed to properly supervise, train, or reprimand officers in the 67th precinct conducting alcohol related arrests.

JURISDICTION

6. Plaintiffs bring this action for compensatory damages, punitive damages, and attorney's fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988, and the Constitutions of the State of New York and the United States.
7. Defendant the City of New York ("City") was a Municipal corporation duly existing under and by virtue of the laws of the State of New York and doing business in the State of New York.
8. Defendants Chau, Fernandez, Vanbrakle, Martinez and John and Jane Doe 1-10, were employees of the New York City Police Department ("NYPD"), acting in their capacity as a police officers, and under color of law.
9. That all acts and incidents complained of herein occurred in Kings County, New York.
10. That within 90 days after the state law claims accrued, Plaintiffs Demas, Nunes, Glasgow and Frederick served a Notice of Claim, in writing, sworn by the claimant, containing the name and post office address of the Plaintiffs and Plaintiffs' attorney, the nature of the claim, the time when, the place where and the manner by which the claim arose, the items of damage and the injuries claimed to have been sustained, to be served upon the defendants by delivering a copy thereof to the person designated by law as a person to whom such claims may be served.

11. More than 30 days has elapsed since Plaintiffs Demas, Nunes, Glasgow and Frederick served their notice of claims and no payment or adjustment or offer of settlement was made.
12. That Michael Demas appeared for a hearing pursuant to §50-H of the General Municipal Law on or about December 20, 2018.
13. That Gwynn Glasgow appeared for a hearing pursuant to §50-H of the General Municipal Law on or about January 8, 2019.
14. That Jennifer Frederick appeared for a hearing pursuant to §50-H of the General Municipal Law on or about March 5, 2019.
15. That Catherine Nunes appeared for a hearing pursuant to §50-H of the General Municipal Law on or about May 8, 2019.
16. That this claim has been commenced and this action has been started within one year and ninety days after the accrual of the state law violation upon which the New York state law claims are based.
17. Pursuant to CPLR Section 1602(2)(iv), Defendants are jointly and severally liable for all of Plaintiffs' damages, including but not limited to Plaintiffs' non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that Defendants owed the plaintiff a non-delegable duty of care.
18. Pursuant to CPLR Section 1602(7), Defendants are jointly and severally liable for all of plaintiff's damages, including but not limited to Plaintiffs' non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that Defendants acted with reckless disregard of the safety of others.
19. Pursuant to CPLR Section 1602(2)(iv), Defendants are jointly and severally liable for all of Plaintiffs' damages, including but not limited to Plaintiffs' non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that Defendants

are vicariously liable for the negligent acts and omissions of others who caused or contributed to the Plaintiffs' damages.

20. That by reason of the foregoing, Plaintiffs' have been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

JURY DEMAND

21. Plaintiffs demand trial by jury in this action.

STATEMENT OF FACTS

Heart of Steel Plaintiffs

22. Plaintiffs Demas, Glasgow, Nunes and Frederick are members of, or acquaintances of, Heart of Steel Band.
23. Heart of Steel is a steel drum band that performs on J'Ouvert weekend and throughout the year at various events and festivals.
24. J'Ouvert, also known as the West Indian Day Parade, is a Caribbean festival that occurs annually at daybreak on Labor Day.
25. J'Ouvert is celebrated primarily in the Caribbean, but also in Brooklyn, New York.
26. J'Ouvert was first celebrated by freed Trinidadians after emancipation.
27. Prior to J'Ouvert, steel drum bands, such as Heart of Steel, practice their drum routine and songs at meetings called Pan Yards.
28. These Pan Yards, and their locations, are approved by the NYPD and the 67th precinct, and planned in conjunction with them at community meetings.
29. Heart of Steel band held a daily Pan Yard, to practice for the J'Ouvert celebration, in the months leading up to J'Ouvert, at 1020 E. 48th Street.
30. The NYPD was aware of and approved this area as a practice location for Heart of Steel.

31. 1020 E. 48th Street is a private commercial Lot, located in a commercial area.
32. On August 31, 2018 and extending into the morning of September 1, 2018, Heart of Steel Band was holding a Pan Yard event at 1020 E. 48th Street.
33. Admission to the Pan Yard was free.
34. Plaintiffs sought no profit or pecuniary gain for this event.
35. Some Plaintiffs brought food to the Pan Yard and shared the food for free.
36. At approximately 1:50 a.m. on September 1, 2018, numerous New York Police Department (“NYPD”) officers and police vehicles arrived at the Pan Yard.
37. Sergeant Chau instructed Officers Fernandez, Vanbrakle and John and Jane Doe Officers 1-10 to arrest all Plaintiffs.
38. Sergeant Chau, and Officers Fernandez, Vanbrakle and Jane and John Doe Officers 1-10 gathered all Plaintiffs together near an area of the Pan Yard where food was being served.

Michael Demas

39. Michael Demas, at the time of this incident, was 58 years old.
40. He is a leader of Heart of Steel band.
41. Mr. Demas was watching the band perform, inside the Pan yard, at the time the officers arrived.
42. Sergeant Chau, and Officers Fernandez, Vanbrakle and Jane and John Doe Officers 1-10 approached Mr. Demas and told him they were shutting the event down.
43. Mr. Demas offered to assist the officers and asked the band to stop playing.
44. Officers Fernandez and Vanbrakle, at the instruction of Officer Chau, arrested Mr. Demas for Obstruction of Governmental Administration in the Second Degree.
45. Mr. Demas never attempted to or impaired the administration of any governmental function.

46. Mr. Demas never refused any order or instruction of any NYPD officer or sergeant.
47. Mr. Demas was taken to the 67th Precinct then to Central Bookings where he was processed and arraigned.
48. Mr. Demas, on September 1, 2018 accepted an ACD, and the Obstruction of Governmental Administration charges against him were dismissed and sealed on March 1, 2019.
49. He was released from custody on the early morning of September 2, 2018.
50. Mr. Demas was held in custody for approximately 24 hours.
51. Because of his detention, Mr. Demas, and Heart of Steel Band, were unable to perform in a Steel Band competition scheduled for the night of September 2, 2018.
52. As a result of the defendants' conduct, plaintiff has been caused to suffer severe anxiety, humiliation, and embarrassment, damage to personal reputation, apprehension, fear and distrust of the police, emotional and psychological trauma, loss of income, and violation of rights under the U.S. and New York Constitutions, and applicable statutory and case law.

Catherine Nunes

53. Catherine Nunes, at the time of this incident, was 71 years old.
54. Ms. Nunes walks with a cane.
55. On the night of August 31, 2018, Ms. Nunes prepared food to share with others at the Pan Yard.
56. At no time Ms. Nunes serve, sell, or consume any alcohol.
57. Ms. Nunes was sitting with friends at the time the NYPD officers arrived.
58. The officers instructed Ms. Nunes to stand up and come to the area where food was being served.

59. Ms. Nunes followed the officers' instructions and walked to the serving area.
60. Officer Chau instructed Officers Roman and Fernandez to arrest Ms. Nunes for operating an unlicensed bottle club, ABC 64-b.
61. Ms. Nunes was handcuffed by Officers Roman and Fernandez at the instruction of Officer Chau.
62. Prior the handcuffing, she and other observers instructed the officers that she had a pre-existing wrist injury.
63. Fernandez and Roman jerked her arms behind her and tightened the cuffs excessively.
64. Ms. Nunes again told them about her injury and asked the officers to loosen the cuffs.
65. The officers refused to loosen the cuffs, but transported Ms. Nunes to Kings County Hospital.
66. She was eventually released from the hospital and taken to the 67th Precinct where she was placed in a cell.
67. Around 9 a.m. she was taken to Central Bookings where she was processed and arraigned.
68. Ms. Nunes, on September 2, 2018 accepted an ACD, and all charges against her were dismissed and sealed on March 1, 2019.
69. She was released from custody on the early morning of September 2, 2018.
70. Ms. Nunes was held in custody for approximately 24 hours.
71. Ms. Nunes, because of the defendants' excessive force and assault and battery, suffered injuries to her wrist and elbow that may be permanent and may require surgery.
72. As a result of the defendants' conduct, Ms. Nunes has been caused to suffer severe anxiety, humiliation, and embarrassment, damage to personal reputation, apprehension, fear and distrust of the police, emotional and psychological trauma, loss of income, and

violation of rights under the U.S. and New York Constitutions, and applicable statutory and case law.

Gwynn Glasgow

73. Gwynn Glasgow, at the time of this incident, was 40 years old.
74. On the night of August 31, 2018, Ms. Glasgow came to the Pan Yard to watch the steel band perform.
75. Sergeant Chau approached Ms. Glasgow and asked if the band had a liquor license.
76. She told officer Chau that they did not, but that admission was free and they were not selling alcohol.¹
77. At no time during the Pan Yard did Ms. Glasgow serve, consume, or sell alcohol.
78. Sergeant Chau then instructed officer Fernandez to arrest Ms. Glasgow for operating an unlicensed bottle club.
79. Officer Fernandez put Ms. Glasgow in handcuffs.
80. Ms. Glasgow was placed in an NYPD van with the other Plaintiffs and was taken to the 67th Precinct where she was placed in a cell.
81. Around 9 a.m. she was taken to Central Bookings where she was processed and arraigned.
82. Ms. Glasgow, on September 2, 2018 accepted an ACD, and all charges against her were immediately dismissed and sealed.

¹ ABC 64-B states, “[i]t shall be unlawful for any person, partnership or corporation **operating a place for profit or pecuniary gain**, with a capacity for the assemblage of twenty or more persons to permit a person or persons to come to the place of assembly for the purpose of consuming alcoholic beverages on said premises, which alcoholic beverages are either provided by the operator of the place of assembly, his agents, servants or employees, or are brought onto said premises by the person or persons assembling at such place, unless an appropriate license has first been obtained from the state liquor authority by the operator of said place of assembly. . . . Nothing contained herein shall prohibit or restrict the leasing or use of such place of assemblage as defined herein by any organization or club enumerated in subdivision seven hereof.”

- 83. She was released from custody on the early morning of September 2, 2018.
- 84. Ms. Glasgow was held in custody for approximately 24 hours.
- 85. As a result of the defendants' conduct, Ms. Glasgow has been caused to suffer severe anxiety, humiliation, and embarrassment, damage to personal reputation, apprehension, fear and distrust of the police, emotional and psychological trauma, loss of income, and violation of rights under the U.S. and New York Constitutions, and applicable statutory and case law.

Jennifer Frederick

- 86. Jennifer Frederick, at the time of this incident, was 65 years old.
- 87. On the night of August 31, 2018, Ms. Frederick cooked food and brought it to the Pan Yard to share with other guests and friends.
- 88. Sergeant Chau instructed Officer Fernandez to arrest Ms. Frederick for operating an unlicensed bottle club.
- 89. Ms. Frederick was arrested by Officer Fernandez for operating an unlicensed bottle club.
- 90. At no time on the night of August 31, 2018, or into the morning of September 1, 2018 did Ms. Frederick ever serve or sell any alcohol.
- 91. Ms. Frederick was taken to the 67th Precinct then to Central Bookings where she was processed and arraigned.
- 92. Ms. Frederick, on September 1, 2018 accepted an ACD, and all charges against her were dismissed and sealed on March 1, 2019.
- 93. She was released from custody on the early morning of September 2, 2018.
- 94. Ms. Frederick was held in custody for approximately 24 hours.
- 95. As a result of the defendants' conduct, Ms. Frederick has been caused to suffer severe anxiety, humiliation, and embarrassment, damage to personal reputation, apprehension,

fear and distrust of the police, emotional and psychological trauma, loss of income, and violation of rights under the U.S. and New York Constitutions, and applicable statutory and case law.

Plaintiffs Unconstitutionally Arrested by Sergeant Chau Around J'Ouvert

George Hunte

96. George Hunte, at the time of this incident, was 47 years old.
97. On the night of August 31, 2018, Mr. Hunte held a party at his house to celebrate the start of J'Ouvert weekend.
98. Around 3 a.m., on September 1, 2018, fresh off arresting the Heart of Steel plaintiffs, Sergeant Chau and officers of the 67th precinct stormed Mr. Hunte's home.
99. Approximately 20 officers entered Mr. Hunte's curtilage and backyard without permission or probable cause.
100. One, or more, John and Jane Doe officers illegally entered Mr. Hunte's home without permission or probable cause.
101. Mr. Hunte was held and questioned, without probable cause, for approximately 20 minutes by Sergeant Chau and officers of the 67th precinct.
102. During this time, Mr. Hunte was not free to leave and was illegally seized.
103. At the direction of Sergeant Chau, Mr. Hunte was issued a summons by officer Martinez.
104. The summons was for alleged violation of administrative code 10-108(c), operating a sound device near a public place, for "commercial and business advertising purpose."
105. Mr. Hunte never operated any sound device for a "commercial" or "business advertising purpose."
106. This summons was dismissed and sealed prior to Mr. Hunte's first scheduled court appearance.

107. As a result of the defendants' conduct, Mr. Hunte has been caused to suffer severe anxiety, humiliation, and embarrassment, damage to personal reputation, apprehension, fear and distrust of the police, emotional and psychological trauma, loss of income, and violation of rights under the U.S. and New York Constitutions, and applicable statutory and case law.

Derek Lewis

108. Derek Lewis, at the time of this incident, was approximately 55 years old.

109. Mr. Lewis, on June 2, 2018, was hosting a charity fundraiser, celebrating the start of the J'Ouvert season.

110. Sergeant Chau, along with approximately 20 officers, stormed the venue.

111. John and Jane Doe officers, at the instruction of Sergeant Chau, arrested Mr. Lewis without probable cause for operating an unlicensed bottle club.

112. Mr. Lewis was taken to the 67th Precinct then to Central Bookings where he was processed and arraigned.

113. Mr. Lewis was held for approximately 24 hours and released on his own recognizance.

114. Mr. Lewis, on July 12, 2018 accepted an ACD.

115. On January 11, 2019, all charges against Mr. Lewis were dismissed and sealed.

116. As a result of the defendants' conduct, Mr. Lewis has been caused to suffer severe anxiety, humiliation, and embarrassment, damage to personal reputation, apprehension, fear and distrust of the police, emotional and psychological trauma, loss of income, and violation of rights under the U.S. and New York Constitutions, and applicable statutory and case law.

**FIRST CAUSE OF ACTION:
FALSE IMPRISONMENT UNDER NEW YORK STATE LAW**

117. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
118. That on September 1, 2018, and at all times hereinafter mentioned and upon information and belief, Defendants Chau, Vanbrakle and Fernandez, without justification and without probable cause, imprisoned Plaintiffs Demas, Nunes, Glasgow and Frederick.
119. That the Defendants Chau, Vanbrakle and Fernandez acting under the color of the law, intentionally confined Plaintiffs against their will and said confinement was not privileged.
120. As a result of the above constitutionally impermissible conduct, Plaintiffs were caused to suffer psychological and emotional injuries, violation of their civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to their reputation and their standing within their community.
121. As a result of Defendants' impermissible conduct, Plaintiffs demand judgment against Defendants' in a sum of money to be determined at trial.
122. Defendant City and the NYPD are liable for these violations of the New York State Constitution under the principle of respondeat superior.

**SECOND CAUSE OF ACTION:
FALSE ARREST UNDER 42 U.S.C 1983**

123. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
124. Plaintiffs' Demas, Nunes, Glasgow and Frederick, Hunte and Lewis were arrested in the absence of probable cause, at the direction of, or under practices, policies or customs promulgated by the NYPD and the City.
125. As a result of the aforesaid conduct by Defendants Chau, Vanbrakle, Martinez and Fernandez, Plaintiffs were subjected to illegal, improper and false arrest by the Defendants

and taken into custody and caused to be falsely imprisoned, detained and confined without any probable cause, privilege or consent.

126. As a result of the above constitutionally impermissible conduct, Plaintiffs were caused to suffer psychological and emotional injuries, violation of their civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to their reputation and their standing within their community.

127. As a result of Defendants' impermissible conduct, Plaintiffs demand judgment against Defendants in a sum of money to be determined at trial.

**THIRD CAUSE OF ACTION:
42 U.S.C. § 1983; *MONELL* MUNICIPAL LIABILITY FOR CONDUCT OF OFFICERS
IN THE 67th PRECINCT AND SERGEANT CHAU**

128. Plaintiffs were arrested, without probable cause, and charged with operating an unlicensed bottle club, pursuant to ABC law 64-b.

129. ABC law 64-b only applies if a person or corporation is operating a place for profit or pecuniary gain.

130. The arrests of Plaintiffs all were made by officers in the 67th precinct at the instruction of Sergeant Chau.

131. As conditions Sergeant, Chau is responsible for enforcing all alcohol related laws in the 67th precinct.

132. The 67th precinct contains large Caribbean and West Indian communities who are routinely and consistently harassed and arrested without probable cause and charged with minor offenses such as operating a bottle club without a license.

133. Officers in the 67th precinct, such as Sergeant Chau, routinely arrest people who are not operating a place for profit or pecuniary gain, and charge them under ABC law 64-b.

134. Officers in the 67th precinct, such as Sergeant Chau, routinely arrest people who are not owners, operators or employees of the locations they believe are illegally serving alcohol, and charge them under ABC law 64-b.
135. Officers in the 67th precinct, such as Sergeant Chau, routinely arrest people who are members of a religious, non-profit or charitable organization and exempt from ABC 64-b.²
136. The NYPD provides no specific training or supervision on when to make arrests pursuant to ABC 64-b.
137. The NYPD has failed to properly supervise Sergeant Chau, and other officers in the 67th precinct, who consistently violate the constitutional rights of persons in their precinct, by charging them without probable cause for ABC 64-b.
138. As alleged in *Marsh v. City of New York et. al.*, 18-cv-1883 (E.D.N.Y. Mar. 28, 2018), Sergeant Alan Chau and Saul Delacruz, also of the 67th precinct, arrested Steven Marsh for operating an unlicensed bottle club.
139. All charges, as alleged in the complaint, were subsequently dismissed against Mr. Marsh, as he did not have any ownership interest and was not an employee at the location serving alcohol.
140. In *Theodat v. New York, et. al.*, 518766/2018 (Kings Co. Supreme Court), Sergeant Chau and Officer Delio Fernandez, also named in this complaint, forcibly entered a business and arrested and charged the Plaintiff, without probable cause, with operation of an unlicensed bottle club.

² ABC 64-b subsection 7 states “7. This section shall not apply to any non-profit religious, charitable, or fraternal organization nor to a club as defined in section three, subdivision nine of this chapter, nor to a duly recognized political club, except that it shall be unlawful for any of the above to permit consumption of alcoholic beverages during the hours prohibited by or pursuant to section one hundred six of the alcoholic beverage control law.”

141. *Omar Stewart v. City of New York*, 501781/2018 (Kings Co. Supreme Court), Sergeant Chau, along with other officers of the 67th precinct, arrested Plaintiff and charged him with unlicensed bottle club.
142. Omar Stewart was not an owner, or serving alcohol, at the establishment he was arrested at.
143. All charges against Omar Stewart were dismissed.
144. In *Jean v. City of New York*, 504931/2018 (Kings Co. Supreme Court), Sergeant Chau, along with other officers of the 67th precinct, charged Andre Jean with Unlicensed Cabaret, operating a dance club without a license, without probable cause.
145. All charges against Andre Jean were dismissed.
146. In *Jackson v. City of New York, et. al.*, Sergeant Chau, along with other officers of the 67th precinct, entered the Plaintiff's home without a warrant or probable cause and arrested a number of people at his house without probable cause.
147. All charges were dismissed against all plaintiffs.
148. In *Frances Babb v. City of New York, et al.*, 508225/2019 (Kings Co. Supreme Court), Sergeant Chau, along with other officers of the 67th precinct, entered the Plaintiff's home without a warrant or probable cause and arrested Ms. Babb, who was asleep upstairs, and charged her with operating an unlicensed bottle club.
149. Ms. Babb was not operating a place for profit, nor was she serving any alcohol.
150. These charges were all dismissed and sealed.
151. *Patricia Watson v. City of New York, et. al.*, 515244/2018 (Kings Co. Supreme Court) alleges that Sergeant Chau and Officer Viti, of the 67th precinct, entered Little Ochie Restaurant and lounge, along with ten other NYPD officers, and ordered that the restaurant be closed.

152. Little Ochie restaurant is a Caribbean American restaurant that serves primarily the Caribbean and West Indian communities in the 67th precinct.
153. Patricia Watson was arrested and charged with criminal nuisance 2, and sound reproduction devices; all charges against her were eventually dismissed and sealed.
154. The complaint alleges Sergeant Chau and the NYPD “prevent, curtail, limit, harass Caribbean owned businesses from engaging in Caribbean styled music and entertainment events.”
155. Sergeant Chau and officers of the 67th precinct are agents and employees of Defendant City of New York.
156. Even after numerous lawsuits cited above, and dismissals of criminal charges, officer Chau continues to make arrests without probable cause, for operating unlicensed bottle clubs, along with officers of the 67th precinct.
157. Under the principles of municipal liability for federal civil rights violations, the City of New York, and the NYPD or authorized delegates have final managerial responsibility for training, instructing, supervising, and disciplining officers in the 67th precinct regarding their conduct in the prosecution of criminal matters, including, but not limited to:
 - a. their constitutional obligation to make arrests only with probable cause;
 - b. their constitutional obligation not to enter private locations without a warrant or exigency.
158. The aforesaid deliberate or de facto policies, procedures, regulations, practices and/or customs, including the failure to properly instruct, train, supervise, and/or discipline

employees with regard thereto, were implemented or tolerated by policymaking officials for Defendant City, who knew:

- a. to a moral certainty that such policies, procedures, regulations, practices, and/or customs concern issues that regularly arise in the investigation and prosecution of alcohol crimes, by conditions officers;
- b. that such issues present employees with difficult choices of the sort that instruction, training, supervision, and discipline will make less difficult;
- c. that the wrong choice by NYPD officers concerning implementation of conditions laws , specifically ABC 64-B, will frequently cause the deprivation of the constitutional rights of the accused and cause him constitutional injury; and
- d. that employees of the 67th precinct, especially Segeant Chau, have a documented history of making wrong choices in such matters.

159. The aforementioned policymaking officials had the knowledge and the notice alleged in the preceding paragraph based upon:

- a. numerous credible allegations in the form of secondary sources³ and civil lawsuits, and dismissal of criminal charges that the NYPD had:
 - i. failed to properly train or supervise Sergeant Chau, and members of the 67th precinct in effectuating constitutional conditions arrests, primarily for ABC 64-b.
 - ii. Officers in the 67th precinct, such as Sergeant Chau, routinely arrest people who are not operating a place for profit or pecuniary gain.
 - iii. Officers in the 67th precinct, such as Sergeant Chau, routinely make mass arrests of people who are not owners of, or associated with, the locations they believe are illegally serving alcohol.

³ See *Cordero v. City of New York*, 282 F. Supp. 3d 549, 563–64 (E.D.N.Y. 2017) (“Newspaper articles, reports, and other documents may provide sufficient documentary evidence for *Monell* liability.”).

- iv. Officers in the 67th precinct, such as Sergeant Chau, routinely arrest people who are members of a religious, non-profit or charitable organization and exempt from ABC 64-B.

- 160. During all times material to this complaint, the City and the NYPD, owed a duty to the public at large and to Plaintiff to implement policies, procedures, customs, and practices sufficient to prevent, deter, and avoid conduct by subordinates that violate the constitutional rights of criminal suspects or defendants and of other members of the public.
- 161. However, the NYPD and it's designees, as policymakers for the City, knowingly and intentionally breached, or were deliberately indifferent to, this duty.

**FOURTH CAUSE OF ACTION:
NEGLIGENT AND INTENTIONAL INFLECTION OF
EMOTIONAL DISTRESS**

- 162. Plaintiffs Demas, Nunes, Glasgow and Frederick repeat and re-allege each and every allegation contained in the preceding paragraphs as if fully set forth herein, and further allege as follows.
- 163. The Defendants, acted intentionally, recklessly, and with utter disregard to the consequences of their actions and caused severe emotional distress to Plaintiff through their actions.
- 164. Such actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulting in severe emotional distress to Plaintiff.
- 165. That as a result of said intentional and negligent acts, Plaintiffs suffered serious distress, mental shock, mental anguish, and psychological trauma and was otherwise injured.
- 166. By reason of the foregoing, Defendants are liable to Plaintiffs for damages.

**FIFTH CAUSE OF ACTION:
VIOLATIONS OF DUE PROCESS OF LAW AND FABRICATION OF
EVIDENCE UNDER 42 U.S.C 1983**

167. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
168. That Defendants Vanbrakle and Fernandez falsely informed the Kings County District Attorney's Office ("KCDA") that they saw Plaintiff Demas attempt "to run back inside the location" after he had been ordered to leave.
169. That Defendants Vanbrakle and Fernandez falsely stated under penalty of perjury, and then forward this information to the KCDA. This claim was to give the misleading and false impression that Defendants Vanbrakle and Fernandez lawfully arrested Mr. Demas for Obstruction of Governmental Administration.
170. That Defendants Vanbrakle, Fernandez and Chau falsely stated under penalty of perjury to KCDA that Plaintiffs' Glasgow, Nunes, Frederick and Lewis were operating an unlicensed bottle club.
171. That the aforementioned statements by Defendants Vanbrakle, Fernandez and Chau, consisted of fabricated and falsified information was utilized and relied upon by the KCDA.
172. That Defendants Martinez and Chau falsely stated under penalty of perjury to KCDA that Plaintiff Hunte was operating a sound device for a commercial or business purpose.
173. That the aforementioned statements by Defendants Martinez and Chau, consisted of fabricated and falsified information was utilized and relied upon by the KCDA.
174. The Individual Defendants acting individually and in concert and conspiracy, deliberately, and recklessly.

175. At all times Defendants were acting within their scope of their employment with The City of New York, at the aforesaid location.
176. That this information caused Plaintiff to be denied his liberty and right to a fair prosecution in violation of fourth, fifth, sixth, and fourteenth amendments of the United States Constitution.

**SIXTH CAUSE OF ACTION:
ASSAULT AND BATTERY UNDER NEW YORK STATE LAW**

177. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
178. That, on September 1, 2018 Defendants Vanbrakle and Fernandez, who were acting within the scope of their employment with the Defendant, the city of New York.
179. That, on September 1, 2018 Defendants Vanbrakle and Fernandez committed an assault and battery knowingly, intentionally, and willfully against all Plaintiffs.
180. That, on September 1, 2018, Defendants Vanbrakle and Fernandez who committed the aforementioned assault and battery upon the Plaintiffs were acting within the scope of their employment with the City of New York.
181. That, on September 1, 2018, the assault and battery on Plaintiffs was without probable cause and was not the result of an appropriate arrest.
182. By reason of the foregoing, Defendants Vanbrakle and Fernandez are liable to Plaintiffs for damages.

**SEVENTH CAUSE OF ACTION:
EXCESSIVE FORCE UNDER 42 U.S.C. 1983**

183. Plaintiff Nunes repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
184. In detaining Plaintiff Nunes, Defendants Vanbrakle and Fernandez used force.

185. The force used was unreasonable and excessive.
186. As a result of the unreasonable and excessive force, Plaintiff Nunes suffered injuries and substantial pain.
187. Defendants Vanbrakle and Fernandez use of force was a substantial factor in causing the harm to Plaintiff.
188. As a result of the foregoing, Plaintiff Nunes was caused to suffer physical, psychological and emotional injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, and loss of freedom.

DAMAGES

189. As a direct and proximate cause of Defendants' actions and inactions, Plaintiffs were deprived of their civil rights under the Fourth, Fifth, Sixth, and Fourteen Amendments of the United States Constitution and under the laws of New York.
190. This action seeks damages from on or prior to September 1, 2018, through the present.
191. The unlawful, intentional, willful, deliberately indifferent, reckless, negligent, wanton and/or bad-faith acts and omissions of Defendants caused Plaintiffs to be deprived of liberty, deprived of relevant and exculpatory evidence, subjected to assault and battery and excessive force, and subjected to illegal searches.
192. Such acts and omissions of Defendants caused the following injuries and damages to Plaintiff which were foreseeable to Defendants at the time of the acts and omissions and which continue to date and will continue into the future: susceptibility to physical assaults and batteries and physical assault and batteries, physical injuries, pain and suffering, mental anguish, emotional distress, psychological damage, loss of liberty, loss of relationships, loss of family, loss of companionship, loss of consortium, loss of

guidance, loss of emotional and psychological development, humiliation, embarrassment, and degradation.

193. Such acts and omissions of Defendants entitle Plaintiff to compensatory and punitive damages.

WHEREFORE, Plaintiff demands the following relief jointly and severally against all of the Defendants:

- a. Compensatory damages;
- b. Punitive damages;
- c. The convening and empaneling of a jury to consider the merits of the claims herein;
- d. Costs and interest and attorney's fees;
- e. Such other and further relief as this court may deem appropriate and equitable.

Dated: New York, New York
June 28, 2019

Respectfully submitted,



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ATTORNEY'S VERIFICATION

Abraham Rubert-Schewel, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at LORD & SCHEWEL PLLC, attorneys of record for plaintiffs Michael Demas, Catherine Nunes, Jennifer Frederick, Gwynn Glasgow, Derek Lewis and George Hunte. I have read the annexed SUMMONS and COMPLAINT and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff are not presently in the county wherein I maintain my offices.

DATED: New York, New York
June 28, 2019



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